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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTER Attorney Guido Scorza;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX, a military member of the Carabinieri Corps, reported certain alleged violations of the regulations concerning the protection of personal data by the Order of Nursing Professions (OPI) of Udine (hereinafter, the "Order"). In particular, the complainant stated that he learned that, on XX, at the Legion Command where he serves (hereinafter, the "Legion Command"), a certified email message was received, containing an attached note, with the subject "Report of conduct [name and surname of the complainant]," signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination of the OPIs of Friuli Venezia Giulia – hereinafter, the "Coordination") and by the Presidents of the OPIs of Gorizia and Trieste. With this note, the Legion Command was informed of the "series of requests for general civic access" and the "multiple reports" that the complainant and his wife had directed to the aforementioned OPIs, as well as information concerning the complainant's wife (profession; registration with the Order) and the evaluations expressed by these OPIs regarding the perceived inappropriateness of such requests and reports, considered "largely unfounded and that even from the perspective of the average citizen, have no purpose or utility," having as "the sole purpose [...] that of having requested a significant commitment from the administrative offices, from the staff, from the institutional positions of the Entities and from the consultants and professionals who assist them, diverting precious time and also substantial economic resources from the ordinary activities of the Orders." The OPIs therefore "deemed it appropriate to submit to the [Commander of

the Legion Command] the conduct of [the complainant], [in service with] the Carabinieri Corps, which always and in any case represents, to avoid creating an obstacle to the institutional activity of the aforementioned professional Orders for mere personal interests [...]", asking him "to consider what [...] has been stated, solely for the purpose of improving relations between State Entities, which should collaborate with each other for the good of the citizen and the institutions they represent."

According to the complainant, the communication of the aforementioned personal data to the Legion Command, as well as the exchange of such data among the various OPIs that are part of the Coordination, including the Order, would have occurred in the absence of a legal basis.

Furthermore, the complainant lamented the circumstance that the Order and the other OPIs that are part of the Coordination would have unlawfully processed the personal data relating to his profession and employer, which had never been disclosed by the complainant to them.

The complainant also complained that he had not received from the Order, at the time of submitting the aforementioned requests for civic access and reports, any information regarding the processing of his personal data, including regarding the possibility of exercising the rights referred to in Articles 15-22 of the Regulation.

An additional reason for the complaint concerns the circumstance that the Order did not provide a response to a request for the exercise of the right of access to personal data, directed by the complainant to the Order pursuant to Articles 12 and 15 of the Regulation.

With subsequent additions to his initial complaint, the complainant then lamented: that the Order would have communicated to the Legion Command
fatti oggetto di accesso civico";

"la comunicazione di dati al Comando dell'Arma dei Carabinieri è avvenuta nel rispetto delle normative vigenti e per garantire la corretta gestione delle situazioni di conflitto e di sicurezza";

"in conclusione, l'Ordine ha agito nel rispetto delle disposizioni normative e con l'intento di tutelare l'integrità e il buon funzionamento dell'ente, nonché di prevenire situazioni di potenziale conflitto o di rischio per la sicurezza";

"tutto quanto sopra evidenzia la necessità di un bilanciamento tra il diritto di accesso agli atti e la protezione dei dati personali, in un contesto di gestione delle relazioni tra enti pubblici e cittadini".

3. Considerazioni finali.

Alla luce di quanto esposto, si ritiene che l'Ordine abbia operato nel rispetto delle normative vigenti e che le comunicazioni effettuate siano state giustificate da esigenze di sicurezza e di buon funzionamento dell'ente. Si raccomanda, tuttavia, di continuare a monitorare le relazioni con il reclamante al fine di evitare ulteriori conflitti e di garantire una gestione trasparente e corretta delle istanze di accesso civico.

public, with the identification of the applicant";

"the information on the processing of personal data is published on the institutional website of the Order at the page [...] <https://opiudine.it/> [...]";

"the OPI has responded to access requests [civic], despite the significant difficulty caused by the limited human resources available and the enormous workload resulting from the obligations imposed by D.L. 44/2021 and subsequent amendments and integrations";

"with [Legislative Decree of the President of the Republic] September 13, 1946, no. 233 [...] the Professional Health Orders were reconstituted, including that of nursing professions";

"the Legislator, since as far back as 1946, has assigned to the national Federations the task of 'coordinating and promoting the activities of their respective Orders or Colleges'";

"by law October 29, 1954, no. 1049 [...] the IPASVI Colleges were established, to which Article 2 extends the applicability of the provisions of Legislative Decree 233/1946";

"law February 1, 2006, no. 43, had already provided in Article 3 for the establishment of [OPI], but, ultimately, it is the [...] Law January 11, 2018, no. 3 [...], Article 4, that established the Order of Nursing Professions, replacing the previous College, amending Chapter I of Legislative Decree 233/46, of which it left some essential principles unchanged";

Article 7, paragraph 2, of the aforementioned law 3/2018 provides that "the national Federations are

assigned tasks of guidance and coordination and administrative support to the Orders and regional Federations, where established, in the performance of institutional tasks and functions”;
“at the moment when the OPI of Udine found itself facing the complex situation created by the continuous requests, warnings, and demands of the complainant, it legitimately involved the reference Federation”;

“for both, the legal basis for the processing can be found in the aforementioned Article 7”.

With a note dated XX (prot. no. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the Order:

- processed the personal data relating to the profession and the employer of the complainant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code;
- communicated the personal data of the complainant and their spouse to other OPIs in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code;
- communicated to the Command Legion the personal data of the complainant and their spouse, contained in the joint note of the Presidents of the OPIs of XX (prot. no. XX), in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code;
- communicated to the Command Legion the personal data of the complainant and their spouse, contained in note prot. no. XX of XX and the email of XX, in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code;
- communicated the personal data of the complainant to the National Federation of Orders of Nursing Professions (FNOPI) in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code;
- failed to enter into a co-controller agreement for the processing with the other OPIs, in violation of Article 26, paragraphs 1 and 2, of the Regulation;
- failed to provide the complainant and their spouse with information on the processing of personal data, in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data acquired directly from the data subjects) and 14 (in relation to data not acquired directly from the data subjects) of the Regulation;
- failed to respond to a request from the complainant to exercise the right of access to personal data and information related to the processing, in violation of Article 12 and 15, paragraph 1, of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law November 24, 1981, no. 689).

With a note dated XX, the Order, through its lawyer, submitted a defensive memorandum, stating, in particular, that:

“in compliance with what [was noted] by the Office [of the Authority], the OPI [, with note prot. no. XX of XX,] has provided to transmit to the complainant the information on the processing of data,” as well as to provide the same with a response to the request to exercise the right of access to personal data;
“the severity of the violation does not appear to be high, as the processing concerns public data or, in any case, data such that their processing or communication to the complainant's employer could not cause harm in itself”;

“Article 748, paragraph 5, of the DPR 90/2010 (consolidated regulatory text of the military system)” provides that “the military must also promptly communicate to their command or entity: a) any change in civil status and family status” and, therefore, “the recipient of the communication was already

informed of the civil status of the interested party”;

“the OPI acted solely to ensure its own operability, at a time of particular difficulty arising from the burdens associated with monitoring the vaccination obligation imposed on its members. It did not in any way intend to cause any harm to the complainant or to the spouse [...]”;

“the data processed do not fall into the category of ‘special’ data, nor do they pertain to criminal records.”

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see protocol no. XX of the same date), the Order stated, in particular, that:

“[...] the Order acted in the belief that it was operating in the exclusive interest of citizens, including the complainant”;

“the events subject to the complaint occurred in the difficult context of the SARS-CoV-2 epidemic, during which the Order had to face numerous and burdensome obligations provided for by emergency regulations, having to make delicate decisions, in very rapid times, within a regulatory framework characterized by high legal complexity. In particular, the Order had to process numerous proceedings, which involved about 10% of its members, aimed at verifying the possession of the vaccination requirement by professionals registered pursuant to Article 4 of Decree Law 44/2021.”

3. Outcome of the investigative activity

3.1 The processing of personal data relating to the profession and employer of the complainant.

Public entities, in accordance with the principle of “lawfulness, fairness, and transparency” (Article 5, paragraph 1, letter a), of the Regulation), may, as a rule, process personal data if the processing is necessary to fulfill a legal obligation or for the execution of a task in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as Article 2-ter of the Code).

In this case, the Order acquired information relating to the profession carried out by the complainant by querying a search engine and consulting publicly available documents on the Internet.

Such online search operations, consultation, and registration of information relating to the profession and employer of the complainant constitute processing of personal data (see Article 4, nos. 1 and 2 of the Regulation), which, however, cannot be considered necessary for the purposes of the administrative proceedings related to the requests for civic access and the reports submitted by the complainant to the Order, regardless of whether such information was available on the Internet due to its publication by the interested party or by third parties for other purposes not related to the institutional functions of the Order (cf. provisions of November 24, 2022, no. 385, web document no. 9839018; March 10, 2022, no. 82, web document no. 9761383; January 13, 2022, no. 7, web document no. 9745807; July 2, 2020, no. 118, web document no. 9440025; February 13, 2020, no. 35, web document no. 9285411).

The Order, therefore, processed the personal data relating to the profession and employer of the complainant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.

3.2 The communication of personal data to other OPIs in Friuli-Venezia Giulia.

From the documentation in the records and the statements made during the investigation, it is also established that the Order shared with other OPIs in Friuli-Venezia Giulia the information relating to the requests for civic access and the reports submitted by the complainant and their spouse, as well as the registration of the complainant's spouse with the Order, thereby carrying out a processing of personal data that cannot be considered necessary for the purposes of the proceedings initiated in relation to the aforementioned requests for access and reports.

In this regard, it should be noted, with considerations that apply to the overall processing of personal

data subject to complaint, that the defense argument of the Order cannot be accepted, according to which "the access proceedings under Legislative Decree 33/2013 [...] are subject to publication by the recipient entities and are available online as public data, with the identification of the requester." As clarified by the National Anti-Corruption Authority (ANAC) in its Guidelines adopted in agreement with the Guarantor, the "register [of access requests, where established,] contains the list of requests with the subject and date and the related outcome with the date of the decision and is published, obscuring any personal data that may be present [...]" (paragraph 9 of Determination no. 1309 of 12/28/2016 containing the "Guidelines providing operational indications for the definition of exclusions and limits to civic access under Article 5, paragraph 2 of Legislative Decree 33/2013," in G.U. no. 7 of 01/10/2017 and at <https://www.anticorruzione.it/-/determinazione-n.-1309-del-28/12/2016-rif.-1>; see also paragraph 8.2.b. of the Circular of the Minister for Public Administration no. 1 of 2019, containing "Implementation of the rules on generalized civic access (c.d. FOIA)," at http://www.funzionepubblica.gov.it/sites/funzionepubblica.gov.it/files/**Circular_FOIA_n_1_2019.pdf**

The Order has, therefore, communicated the personal data of the complainant and his spouse to the aforementioned OPI in a manner that is not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.

3.3 The communication to the Command Legion of the personal data of the complainant and his spouse contained in the joint note from the Presidents of the OPI of Friuli Venezia Giulia.

With note prot. n. XX of XX, signed by the President of the Order, the President of the OPI of Pordenone (also in his capacity as President of the Coordination) and the Presidents of the OPI of Gorizia and Trieste, and addressed to the Command Legion, where the complainant performs his work activity, the Order communicated to the Command Legion certain personal data of the complainant, namely information regarding the requests for access to documents and the reports submitted by the complainant to the aforementioned OPI and other public entities, the evaluations of the OPI regarding the appropriateness of such requests and reports, and the overall conduct of the complainant, as well as information regarding the marital relationship between the complainant and a professional registered with the Order.

With the note in question, personal data relating to the complainant's spouse were also communicated to the Command Legion, particularly regarding the circumstance that she had also submitted requests for access and reports, as well as the marital relationship in existence with the complainant.

That said, it must be noted that the communication to the Command Legion of the personal data in question cannot be considered necessary to fulfill legal obligations or to carry out a task in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as Article 2-ter of the Code).

Indeed, the thesis of the Order, according to which such processing of personal data would have been necessary for the pursuit of the legitimate interest of the Order to ensure the proper functioning of its administrative action (see Article 97 of the Constitution), cannot be accepted. This is because the legal basis of legitimate interest, as per Article 6, paragraph 1, letter f), of the Regulation, "does not apply to the processing of data carried out by public authorities in the execution of their tasks" (Article 6, paragraph 1, last sentence, of the Regulation). In this regard, the Court of Justice of the European Union has stated that "from the wording of Article 6, paragraph 1, second subparagraph, of the [Regulation], it is clear that a processing of personal data carried out by a public authority in the context of the execution of its tasks cannot fall within the scope of Article 6, paragraph 1, first subparagraph, letter f), of the [Regulation]; as, in fact, 'it follows from recital 47 of the [Regulation] [...], this latter provision cannot apply to such data processing, since their legal basis must be provided for by the legislator', with the consequence that 'if the processing carried out by a public authority is necessary for the execution of a task in the public interest, and thus falls within the tasks mentioned in Article 6, paragraph 1, second subparagraph, of that regulation, the application of Article 6, paragraph 1, first subparagraph, letter e), of the [Regulation] and that of Article 6, paragraph 1, first subparagraph, letter f), of the latter exclude each other' (Judgment C-180/21, *Inspektor v Inspektorata*

kam Visshia sadeben savet, of December 8, 2022, paragraph 85).

Nor does it matter that, as claimed by the Order in its defense submissions, military law provides that the military must inform the Command of their civil status, since, in this case, the Order, together with the other OPI, communicated to the Command Legion additional information beyond just civil status, namely the profession of the spouse, her registration with the Order, and the circumstance that she had submitted requests for civic access and reports.

The communication to the Command Legion of the personal data of the complainant and his spouse is, therefore, not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.

3.4 The communication of further personal data of the complainant to the Command Legion.

The complainant has also complained that the Order sent a note to the Command Legion (prot. n. XX of XX, with the subject "Report on behavioral modalities [name and surname of the complainant]"), with which the aforementioned Command was informed of the circumstance that the complainant "went to the offices of the Order [...], claiming the right to access them to accompany his wife in carrying out the civic access procedure she requested", also reporting the intervention of a patrol from the Carabinieri to address a tense situation. The Command was also informed that the complainant "sent on the same date of XX and XX two other requests for civic access to documents". In the note in question, it is also specified that it is sent "to highlight the repeated conduct of [the complainant] and to consider whether any mediation moments are foreseen".

The complainant has also complained that, in order to obtain an appointment with the Commander of the Command Legion, the Order, with an email dated XX, sent to the Command Legion a copy of the correspondence exchanged between the Order and the complainant, containing data personal data of the latter. In particular, a copy of note prot. no. XX of XX was sent, sent by the Order to the complainant and containing communications related to certain requests submitted by the complainant. Contrary to what was claimed by the Order, the information in question, relating to the fact that the complainant had submitted the aforementioned requests, must be considered personal data, as it refers to an identified natural person (see the definition of "personal data" in Article 4, paragraph 1, no. 1, of the Regulation). Therefore, in relation to the processing of such data (i.e., the information related to the events that occurred at the Order's headquarters and the requests submitted by the complainant), the same considerations illustrated in the previous paragraph 3.4 apply, since the communication of the same to the Command Legion cannot be considered necessary to fulfill legal obligations or to perform a task in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3, of the Regulation, as well as Article 2-ter of the Code), with the consequence that, even in this circumstance, the Order acted in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code.

3.5 The failure to enter into a co-controller agreement.

Pursuant to Article 4, paragraph 1, no. 7), of the Regulation, the data controller is "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria applicable to its designation may be laid down by Union or Member State law." When two or more data controllers jointly determine the purposes and means of processing, "they are joint controllers" and must "determine in a transparent manner, by means of an internal agreement, their respective responsibilities regarding compliance with the obligations arising from the [...] regulation, with particular regard to the exercise of the rights of the data subject, and their respective functions for communicating the information referred to in Articles 13 and 14, unless and to the extent that the respective responsibilities are determined by Union or Member State law to which the data controllers are subject. Such an agreement may designate a contact point for data subjects" (Article 26, paragraph 1, of the Regulation). The agreement between the joint controllers "adequately reflects their

respective roles and relationships with data subjects” and the “essential content of the agreement [must be] made available to the data subject” (Article 26, paragraph 2, of the Regulation). As clarified by the European Data Protection Board, “the general criterion for the existence of joint controllership is the joint participation of two or more parties in defining the purposes and means of a processing operation. Joint participation may take the form of a common decision made by two or more parties [...]” (“Guidelines 07/2020 on the concepts of controller and processor in the GDPR”, adopted on July 7, 2021, paragraph 53). That said, it is noted that, as illustrated above, note prot. no. XX of XX was signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination), and the Presidents of the OPIs of Gorizia and Trieste.

Having determined jointly the purposes and means of processing the personal data of the complainant and their spouse, for the purpose of sending the note in question to the Command Legion, they acted, albeit in the absence of a valid legal basis, as joint controllers of the processing (see Article 4, paragraph 1, no. 7), of the Regulation), having exercised a “decisive influence on the implementation and modalities of the processing, through a common decision or converging decisions that complement each other and are necessary for the processing as they have a tangible impact on the determination of the purposes and means” (“Guidelines 07/2020 on the concepts of controller and processor in the GDPR”, cited, Annex 1, which takes up the contents of section 3, relating to the “definition of joint controllers”). Nevertheless, the Order and the other OPIs of Friuli Venezia Giulia did not enter into an internal agreement before commencing the processing, in order to transparently regulate their respective responsibilities regarding compliance with the obligations arising from the Regulation, thus the Order acted in violation of Article 26, paragraphs 1 and 2, of the same.

3.6 The failure to provide information on the processing of personal data.

In accordance with the aforementioned principle of “lawfulness, fairness, and transparency,” the data controller must take appropriate measures to provide the data subject, before commencing the processing, with all the information required by the Regulation, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language (see Articles 5, paragraph 1, letter a), 12, 13, and 14 of the Regulation; see also Article 29 Working Party, “Guidelines on Transparency under Regulation 2016/679”, WP260 rev.01, adopted on April 11, 2018 and endorsed by the European Data Protection Board with “Endorsement 1/2018” of May 25, 2018). In this case, the Order has, instead, failed to inform the complainant and their spouse regarding the processing of personal data outlined above. In this regard, it must be noted that the information on the processing of personal data published on the official website of the Order (<https://opiudine.it/>), to which the Order referred during the investigation, pertains to the processing of personal data of users of that website, and is therefore irrelevant to the processing activities subject to the complaint. Moreover, the Order has not declared on what date the aforementioned information would have been published, as it appears to have been modified on date XX (“Last modified: XX”). Nor does it appear that the Order had published on its website a general information notice regarding the processing of personal data carried out in the context of the performance of its institutional duties and its administrative activities, to which the complainant could have referred. Consequently, the Order acted in a manner that is not compliant with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data acquired directly from the data subjects) and 14 (in relation to data not acquired directly from the data subjects) of the Regulation.

3.7 The response to the request of the data subject to exercise the right of access to personal data.

Article 12 of the Regulation provides that the data controller must provide the data subject with information regarding the action taken in response to a request under Articles 15 to 22 of the Regulation without undue delay and, in any case, no later than one month from the receipt of the request (paragraph 3).

If the data controller does not comply with the request of the data subject, they must inform the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy (paragraph 4). From the complaint and the documentation attached to it, it emerges

that, in this case, the complainant, on date XX, submitted a request to the Order for access to personal data and information regarding processing, pursuant to Article 15 of the Regulation. The complainant complained of not having received any response to the aforementioned request, and in this regard, the Order has not produced any evidence to demonstrate its timely response. Nor has the Order shown that it informed the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy (see Article 12, paragraph 4, of the Regulation). The Order, in fact, provided a response to the data subject on date XX (see note prot. no. XX), that is, after receiving the notice of administrative violation from the Authority, thus acting in violation of Articles 12 and 15, paragraph 1, of the Regulation.

3.8 The communication by the Order to FNOPI of personal data relating to the complainant. The complainant has alleged that, on date XX, the Order sent a note to the National Federation of Nursing Professions (FNOPI), informing it about the events subject to the aforementioned note no. XX of XX, sent by the Presidents of the OPI of Friuli Venezia Giulia to the Command Legion. Regarding the legal basis that would justify the communication of the personal data in question, the Order invoked Article 7, paragraph 2, of Legislative Decree No. 233 of September 13, 1946, according to which "national federations are assigned tasks of guidance and coordination and administrative support to the Orders and regional Federations." In this regard, it must first be noted that the tasks of guidance and coordination, as well as administrative support, assigned by this provision to FNOPI, must be understood as referring to the institutional functions exercised by the territorial Orders (see Article 1, paragraph 3, of Legislative Decree No. 233 of September 13, 1946, which governs their tasks) and not also to their administrative activities in a broader sense, as in the case of administrative proceedings initiated following requests for civic access. On the other hand, also in compliance with the principle of data minimization (Article 5, paragraph 1, letter c, of the Regulation), the Order could have sought the possible support of FNOPI, even though not provided for by the aforementioned sector regulation, by presenting the issue abstractly, without revealing the identity of the complainant and without communicating to FNOPI personal data relating to them and their spouse. It should also be noted that, in any case, the Order sent the documentation in question to FNOPI "for appropriate knowledge," having therefore not made any specific request for support (see note from the Order registered at FNOPI protocol no. XX of XX). Therefore, the Order communicated to FNOPI personal data relating to the complainant and their spouse in a manner not compliant with the principle of lawfulness, fairness, and transparency and in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code.

3.9 The communication of the complainant's personal data by the Order to the Access Commission. to the administrative documents and the non-compliance by the Order with a decision of such Commission. The claimant has, lastly, complained that, with note prot. n. XX, the Order communicated his personal data to the Commission for access to administrative documents, established at the Presidency of the Council of Ministers, in the context of a proceeding in which he was not a party, since the request to the Commission was submitted by his wife in reference to his own request for access.

In this regard, it must be noted that, with reference to the proceedings under the jurisdiction of the aforementioned Commission, it is not, as a rule, the responsibility of the Guarantor to assess the relevance of acts and documents that the Administration involved in the proceeding has deemed necessary to deposit within the same in order to defend its own determinations regarding the access requests received and to protect its position in the proceeding before the Commission.

The claimant, with note of XX, also requested that "the actions of the OPI of Udine be evaluated in relation to the decisions taken by the Commission for access to administrative documents represented in the provision of April 27, 2023 [...]".

With this provision (prot. n. XX of XX), the Commission represented that it had accepted a complaint from the claimant against the denial of access ordered by the Order and that "in the face of the renewed tacit or express denial of access to the requested documents, there are no further

administrative remedies through which the Commission for access can induce the resisting Administration to comply with what is provided in its decision," with the interested party being able only to propose "an appeal to the TAR or [...] a report to the Public Prosecutor's Office for omission of official acts, where the conditions exist."

In this regard, it should be noted that it is the responsibility of the Administration, and not the Guarantor, in the case of requests for access to documents submitted pursuant to Law No. 241/1990, to ascertain the interest and the reasons underlying the request, as well as to verify the existence of one of the reasons for which the requested document may be withheld from the knowledge of the requester, also based on the types of non-accessible documents identified in the specific regulation of the individual administration. The assessments regarding the determinations adopted by the administration on the specific access request, even in the form of silence, fall outside the competence of the Guarantor and remain subject to review by the competent authorities (art. 25, Law No. 241/1990).

It is therefore believed that, in relation to this reason for complaint, the archiving of the proceeding should be ordered, since the issue raised in the complaint does not appear to fall under the protection of personal data or the tasks assigned to the Guarantor (see art. 14 of the Guarantor Regulation No. 1/2019).

4. Conclusions.

In light of the above assessments, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under art. 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation act of the proceeding and are insufficient to allow for the archiving of the present proceeding, as none of the cases provided for by art. 11 of the Guarantor Regulation No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Order is noted, having acted in violation of arts. 5, par. 1, lett. a), 6, 12, 13, 14, 15, par. 1, 26, parr. 1 and 2, of the Regulation, as well as 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (same processing or interconnected treatments), art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Considering that, in this case, the most serious violations, which are also multiple, related to arts. 5, par. 1, lett. a), 6, 12, 13, 14, 15 par. 1, of the Regulation, as well as 2-ter of the Code, are subject to the sanction provided for by art. 83, par. 5, of the Regulation, as also recalled by art. 166, comma 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, given that the Order has declared to have provided the interested party with a response to the request for the exercise of the right of access to personal data and information referred to in art. 15 of the Regulation, albeit subsequent to the notification by the Authority of the administrative violation contestation, the conditions for the adoption of further corrective measures under art. 58, par. 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, comma 7, of the Code). The violation of the cited provisions is subject to the application of an administrative pecuniary sanction pursuant to the combined provisions of arts. 58, par. 2, lett. i), and 83, par. 5, of the Regulation. The administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must...

determined in the amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Considering that:

the violation concerning the unlawful communication of the personal data of the complainant to the Command Legion, where the complainant performs his work activity, is characterized by particular seriousness, considering the possible repercussions for the interested party in the workplace (cf. art. 83, par. 2, lett. a), of the Regulation);

although in order to preserve the effectiveness and efficiency of the administrative action, deemed compromised by the repeated requests for civic access and the reports submitted by the complainant and his wife, moreover during a period when the Order was particularly burdened by the obligations related to the verification of the vaccination requirement for healthcare professionals (no longer required following the issuance of the decree-law of October 31, 2022, no. 162 and starting from November 1, 2022), the Order has exceeded its institutional competencies (cf. art. 83, par. 2, lett. b), of the Regulation);

the processing did not involve data belonging to special categories as referred to in art. 9 of the Regulation or data related to crimes as referred to in art. 10 of the Regulation (cf. art. 83, par. 2, lett. g), of the Regulation),

it is believed that, in this case, the level of seriousness of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That being said, it is believed that, for the purposes of quantifying the sanction, the following circumstances should be taken into account:

the Order has offered good cooperation with the Authority during the investigation (art. 83, par. 2, lett. f), of the Regulation);

there are no previous relevant violations committed by the Order (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed as a whole, and considering that the Order is a small public entity with limited financial and organizational resources, it is deemed appropriate to determine the amount of the administrative fine at €8,000 (eight thousand) for the violation of arts. 5, par. 1, lett. a), 6, 12, 13, 14, 15, par. 1, 26, paras. 1 and 2, of the Regulation, as well as 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that, as highlighted above, the Order communicated the personal data in question to the complainant's employer, with potential repercussions for him in the workplace, and that, therefore, the processing involved in this context a vulnerable subject (cf. rec. 75 and art. 88 of the Regulation and "Guidelines on Data Protection Impact Assessment and the criteria for determining whether processing 'presents a high risk' under Regulation 2016/679", WP 248 of April 4, 2017), it is also believed that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for by art. 166, paragraph 7 of the Code and art. 16 of the Authority's Regulation no. 1/2019.

It is finally noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Order of Nursing Professions of Udine for violation of arts. 5, par. 1, lett. a), 6, 12, 13, 14, 15, par. 1, 26, paras. 1 and 2, of the Regulation, as well as 2-ter of the Code, in the terms indicated in the motivation;

ORDERS

the Order of Nursing Professions of Udine, represented by the legal representative pro tempore, with registered office at Viale Tricesimo, 206 - 33100 Udine (UD), Tax Code 00491270302, to pay the sum of €8,000 (eight thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is stated that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Order, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of

the Code, to pay the sum of €8,000 (eight thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of Law no. 689/1981;

DISPOSES

- the publication of this provision on the website of the Authority pursuant to art. 166, paragraph 7, of the Code (see art. 16 of the Authority's Regulation no. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of violations and measures adopted in accordance with art. 58, par. 2, of the Regulation (see art. 17 of the Authority's Regulation no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 12, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei